

JUSTIFICATION FOR AN EXCEPTION TO FAIR OPPORTUNITY

Acquisition Title:	Information Systems Cyber Security and Privacy Services - Bridge
Agency:	HRSA
Acquisition Year (FY):	2026
Author:	

2. Description of Action:

Nature:	☐ New Requirement	☒ Follow-on Order	
	☐ Modification to Existing Delivery/Task Order/Contract Number:		
Order Against:	Multiple Award ID/IQ Contract Number:		HHSN316201200126W
Pricing:	☒ Firm-Fixed Price	☐ Time & Materials	☐ Cost Type
Funds:	☐ OMA	☐ Other Funds:	

3. Description of Applicable Contract Provisions:

Not Applicable

4. Description of Supplies or Services:

The estimated value of the proposed action, including all options, is: \$ 4,766,232

The services being acquired are crucial to support mission critical applications and functionalities for HRSA. These services cover over 60 IT Systems, including High Value Assets (HVAs). The services to be acquired include Incident Response, Security Information and Event Management (SIEM), Cloud Monitoring, Assessors, Analysts, Information System Security Officer (ISSO) services, Zero Trust (ZT) Architecture Implementations, Revision 5 control implementations, Continuous Monitoring, and Vulnerability Management.

5. Authority and Rationale:

The Contracting Officer shall give every awardee a fair opportunity to be considered for a delivery/task order exceeding the micro purchase threshold unless one of the following statutory exceptions applies. [FAR 16.505\(b\)\(2\)](#). Mark the applicable exception:

☐ The agency need for the supplies or services is so urgent that providing a fair opportunity would result in unacceptable delays [\[FAR 16.505\(b\)\(2\)\(i\)\(A\)\]](#);

☐ Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services are unique or highly specialized [\[FAR 16.505\(b\)\(2\)\(i\)\(B\)\]](#);

☒ The order must be issued on a sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order [\[FAR 16.505\(b\)\(2\)\(i\)\(C\)\]](#);

The expired contract/order # number for this service is HHSN316201200126W/HHSH250201900008W. It was competed under NITAAC. The total contract value under the contract was \$68,965,212.01. This order was not issued under limited sources procedures and proposals from 2 vendors were evaluated. This sole source bridge task order is a logical follow-onto the referenced order, because the nature of the work is the same for both orders. This will be the second time that the logical follow-on authority is being used. The first follow-on was issued after the recompete award contract/order # HHSN316201200126W/75R60224F80063 was protested. Subsequent to the protest, HRSA recompeted this requirement under 75R60226Q00036. The current bridge will end on April 30, 2026; however, HHS has issued new guidance requiring the issuance of an amendment to solicitation 75R60226Q00036, which was under evaluation. HRSA

does not have adequate time to complete the competition before the expiry of the current bridge. Therefore, this follow-on is logical in terms of time as the awards are a direct line back to the original competed order.

A bridge contract is being proposed for a three (3) month base period and a 52.217-8 Option to Extend Services for up to 6-months. This sole-source award is intended to ensure continuity of services for Information Systems Cyber Security and Privacy Services for HRSA's Office of Information Technology (OIT). The proposed period of performance is necessary to allow sufficient time for the competition to be completed under 75R60226Q00036 and any potential protest to be resolved in a fair and equitable manner.

A sole-source bridge contract is being requested for the current vendor, Cyberdata Technologies Inc. to continue providing services due to the criticality and ongoing nature of the cyber security services required to protect HRSA's Information Technology (IT) systems and applications. The proposed period of performance is necessary to allow time for the resolution of the protest. This sole source action is economical and efficient because HRSA operates over 60 IT systems with numerous unique security configurations that are essential to its operations. The contractor personnel supporting these systems must possess a combination of cyber security skills and specific system knowledge, which can only be achieved through a proper contract transition and knowledge transfer sessions over an extended time period (typically 30-60 days). The current vendor has a dedicated staff of over 25 personnel with the necessary expertise, system knowledge, and specialized training to effectively perform this work. Transitioning to a new vendor without proper preparation would be impractical/impossible because prior knowledge and understanding of specific configurations for Palo firewalls or system-specific controls is required as it relates to the specific HRSA environment to perform the job function. Similarly, to perform ongoing maintenance, monitoring, and improvement or conducting assessments, monitoring security events, investigating incidents, implementing controls, reviewing and updating policies, and ensuring compliance with standards. Transitioning to a new vendor at this juncture into the process will cause delays in meeting HHS goals and potential systems outages.

The approximately 60 HRSA systems and applications are accessed daily by a large number of internal and external users including over 3,000 internal users, over 100,000 registered external users, and millions of public users. Any disruption in the cybersecurity services provided by the vendor would have severe consequences for HRSA's mission and business processes. The potential risks include increased information security risks and potential non-compliance with essential security and access control policies. The vendor's support is crucial for various critical functions, including Incident Response, Security Information and Event Management (SIEM), Cloud Monitoring, Assessors, Analysts, Information System Security Officer (ISSO), Zero Trust (ZT) Architecture Implementations, NIST Revision 5 control implementations, Continuous Monitoring, and Vulnerability Management.

Failure to award a bridge contract to the current vendor would put HRSA at risk of data breaches, compliance violations and disruptions to its mission-critical applications. This could lead to significant operational inefficiencies and potential legal consequences. HRSA's IT systems play a vital role in providing equitable healthcare to geographically isolated and economically or medically vulnerable individuals. These systems support programs that deliver health services to people with HIV, pregnant individuals, mothers and their families, those with low incomes, residents of rural areas, American Indians and Alaska Natives, and others who struggle to access high-quality healthcare. Disruption of this contract would directly impact critical High-Value Asset (HVA) IT systems that support specific HRSA programs, including the 340b IT system that provides discounts on prescription drugs to safety net providers, the OPTN system that facilitates organ transplantation, the NMDP system for bone marrow and cord blood transplantation, and the ICS system for compensating individuals injured by vaccination and maintaining data on healthcare malpractice payments. Therefore, it is imperative to award this contract to ensure uninterrupted service, maintain the security of HVAs, and support HRSA's mission and business processes.

☐ It is necessary to place the order to satisfy a minimum guarantee [\[FAR 16.505\(b\)\(2\)\(i\)\(D\)\]](#); or

☐ A statute expressly authorizes or requires that the purchase be made from a specified source. [\[FAR 16.505\(b\)\(2\)\(i\)\(E\)\]](#).

6. Agency Actions to Take or Remove Barriers That Led to Fair Opportunity Exception (If applicable):

Describe the actions, if any, the agency may take to remove or overcome any barriers that led to the restricted consideration prior to any subsequent acquisition for the supplies of services is made. If no such actions have been taken, explain why.

As discussed above, this requirement is being competed against the GSA multiple award schedule under solicitation 75R60226Q00036 and offers were currently in evaluation; however, the Department of Health and Human Services released new guidance and contract language addressing Artificial Intelligence (AI) use. This solicitation will need to be amended to address these new requirements and new/updated offers received and evaluated.

7. Fair and Reasonable Price/Cost Determination: I hereby determine that the anticipated price/cost for this contract action will be fair and reasonable.

Price analysis will be used to determine that the pricing for this order is fair and reasonable. The NITAAC contract includes contract labor rates that have been determined to be fair and reasonable and will be used with other pricing data received from the contractor to determine that the pricing on the bridge is fair and reasonable.

Signature:	ROBERT J. BURDETTE -S  Digitally signed by ROBERT J. BURDETTE -S Date: 2026.04.28 17:03:17 -04'00'	Date:	
Name:	Robert Burdette		
Title:	Contracting Officer		

8. Any other facts supporting the justification:

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9. Technical / Requirements Certification: By my signature below, I certify that the supporting data under my review which is included in this Justification for an Exception to Fair Opportunity is accurate and complete.

<u>Program Manager</u>	
Name:	
Position Title:	Acting Chief Information Security Officer
Email address:	
Phone:	
<u>Program Manager Supervisor (or one level above Program Manager)</u>	
Name:	
Position Title:	Acting Chief Information Officer
Email address:	
Signature:	
Date:	

10. Contracting Officer's Approval (Required for proposed contract not to exceed \$700,000 (value calculated including all options)): I hereby certify that this justification is accurate and complete to the best of my knowledge. I approve this sole source justification subject to availability of funds, and provided that the services and supplies herein described have otherwise been authorized for acquisition.

Name:	Robert Burdette	Phone:	
Signature:	ROBERT J. BURDETTE -S  Digitally signed by ROBERT J. BURDETTE -S Date: 2026.04.28 17:02:41 -04'00'	Date:	

11. Legal Review:

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12. OPDIV Competition Advocate Approval (Required for proposed contract over \$700,000 but not exceeding \$13.5 million value calculated including all options)):

I have reviewed this justification and find that it adequately supports an exception to fair opportunity.

Name:		Phone:	
Signature:		Date:	

13. Office of Small and Disadvantaged Business Utilization:

I have reviewed this justification and find that it adequately supports an exception to fair opportunity.

Name:		Phone:	
Signature:		Date:	

14. OPDIV HCA Approval (Required for proposed contract over \$13.5 million but not exceeding \$68 million value calculated including all options)):

Name:		Phone:	
Signature:		Date:	

15. Department Competition Advocate:

Concur:	☐	Non-Concur:	☐
Name:		Phone:	
Signature:		Date:	

(The below approval paragraph is required if the cumulative contract value, including all options, exceeds \$68 million.)

16. HHS Senior Procurement Executive (SPE) Approval:

Based on the foregoing justification, I hereby approve the procurement of stated supplies/services being procured on the exception to the fair opportunity basis pursuant to the authority of paragraph 5, 41 U.S.C. 4101, as implemented by [FAR 16.501-2](#).

State supplies/services being procured:

The services being acquired are crucial to support mission critical applications and functionalities for HRSA. These services cover over 60 IT Systems, including High Value Assets (HVAs). The services to be acquired include Incident Response, Security Information and Event Management (SIEM), Cloud Monitoring, Assessors, Analysts, Information System Security Officer (ISSO) services, Zero Trust (ZT) Architecture Implementations, Revision 5 control implementations, Continuous Monitoring, and Vulnerability Management.

State the full statutory authority and FAR cite and title, consistent with paragraph 4, e.g. 41 U.S.C. 3304:

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Name:		Phone:	
Signature:		Date:	